

Applicable Law Acts

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User Query :

A person has been sending me WhatsApp messages demanding ₹2 lakh and threatening to physically harm me and damage my business if I do not pay. The person has also sent photographs of my home and family members to show that they know where I live. I have saved the messages, screenshots and call recordings. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 12/Combined Act

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The threats and demand for money do not, by themselves, establish an IT Act offence. There is no stated personation or statutory private-area image.

✓ STRENGTHS & RIGHTS

- 1
- Avoids the common error of treating the digital medium itself as a separate IT Act offence.

✗ RISKS & OBLIGATIONS

- 1
- A separate cybercrime provision would require additional facts not stated here.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve WhatsApp messages/call recordings for BSA evidence.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 308

— Extortion

The sender demands ₹2 lakh while threatening injury; if payment has not been made, the attempt/putting-in-fear parts of **section 308** are particularly relevant.

Section 351

— Criminal intimidation

Threats of physical harm and damage to business/property are directly within the intimidation concept.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The central offences are extortion and criminal intimidation. The saved home/family photographs strengthen proof of the threat but do not create a separate generic 'surveillance' offence on the stated facts.

✓ STRENGTHS & RIGHTS

- 1 There is an express demand for money linked to threats of harm.

✗ RISKS & OBLIGATIONS

- 1 Use the enacted BNS provisions rather than obsolete IPC numbering or invented BNS sections.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve all messages, call recordings, payment demands, numbers/account identifiers and originals.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

WhatsApp messages, images and recordings are electronic/digital records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to proving messages, screenshots and call recordings.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 Sections 61-63 are the principal electronic-evidence provisions.

✓ STRENGTHS & RIGHTS

1 Multiple preserved forms of communication can corroborate the demand and threats.

✗ RISKS & OBLIGATIONS

1 Do not assign separate BSA section numbers for 'audio' or 'photographs' unless the actual statutory provision supports that description.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Retain originals, metadata and device/source information.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The scenario describes criminal threats/extortion by an individual; no Data Fiduciary processing issue is established.

✓ STRENGTHS & RIGHTS

- 1 Avoids overextending DPDP.

✗ RISKS & OBLIGATIONS

- 1 Additional facts about platform/service-provider data disclosure could change the analysis.

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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